

Court No. - 29

Case :- WRIT - C No. - 13395 of 2011

Petitioner :- Ramvir

Respondent :- State Of U.P. And Another

Petitioner Counsel :- Pankaj Srivastava, Neeraj Srivastava

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Sheo Kumar Singh, J.

Hon'ble Sabhajeet Yadav, J.

Shri Rajesh Tripathi learned counsel for the respondent nos. 3 and 4 is permitted to produce a copy of checking report to show that what items were seized at the time of alleged raid/checking.

As prayed by him, put up this matter on 14.3.2011 as fresh before appropriate Court.

Order Date :- 7.3.2011

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Court No. - 36

Case :- WRIT - C No. - 13395 of 2011

Petitioner :- Ramvir

Respondent :- State Of U.P. And Another

Petitioner Counsel :- Pankaj Srivastava, Neeraj Srivastava

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

On prayer made by Sri Rajesh Tripathi, learned counsel for the respondent nos.3 & 4, the case is directed to be put-up as fresh on 5.4.2011, so as to enable him to obtain instructions in the matter as mentioned in the order dated 7.3.2011.

Order Date :- 14.3.2011

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Court No. - 36

Case :- WRIT - C No. - 13395 of 2011

Petitioner :- Ramvir

Respondent :- State Of U.P. And Another

Petitioner Counsel :- Pankaj Srivastava, Neeraj Srivastava

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

On prayer made by Shri Subhash Gosain, holding brief for Shri Rajesh Tripathi, learned counsel for the respondent nos.3 and 4, the case is directed to be put-up as fresh on 19.4.2011 so as to enable Shri Rajesh Tripathi to obtain instructions particularly in regard to the following:

- (1) Whether any Provisional Assessment was made in respect of the petitioner ?
- (2) Whether copy of the Provisional Assessment was sent to the petitioner, and if so, the mode of such Communication ?
- (3) Whether the petitioner submitted any Objections against the Provisional Assessment ?
- (4) Whether the Objections, if any, submitted by the petitioner were decided by the concerned authority, and if so, copy of such Order ?
- (5) Whether the Order, if any, passed on the Objections of the petitioner against the Provisional Assessment was sent to the petitioner, and if so, mode of such Communication ?
- (6) Whether any Final Assessment Order was issued in respect of the petitioner?

Order Date :- 5.4.2011

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Court No. - 36

Case :- WRIT - C No. - 13395 of 2011

Petitioner :- Ramvir

Respondent :- State Of U.P. And Another

Petitioner Counsel :- Pankaj Srivastava, Neeraj Srivastava

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

Sri Raj Shekhar Srivastava, holding brief of Sri Rajesh Tripathi, learned counsel for the respondents nos.3 and 4, states that the instructions, as mentioned in the order dated 5.4.2011, are likely to be received on 20.4.2011, and in the circumstances, he prays that the case may be directed to be put up as fresh on 27.4.2011.

The case is accordingly directed to be put up as fresh on 27.4.2011.

Order Date :- 19.4.2011

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Court No. - 36

Case :- WRIT - C No. - 13395 of 2011

Petitioner :- Ramvir

Respondent :- State Of U.P. And Another

Petitioner Counsel :- Pankaj Srivastava, Neeraj Srivastava

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

It is submitted by Shri Manoj Srivastava holding brief for Shri Neeraj Srivastava, learned counsel for the petitioner that the recovery proceedings against the petitioner have been initiated for recovering the amount in respect of assessment made on account of alleged theft of electricity without complying with the mandatory requirements of the U.P. Electricity Supply Code, 2005.

By the orders dated 7th March, 2011, 14th March, 2011, 5th March, 2011 and 19th March, 2011, time was granted to Shri Rajesh Tripathi, learned counsel for the respondent Nos.3 and 4 to obtain instructions in the matter.

Shri Rajesh Tripathi, learned counsel for the respondent Nos. 3 and 4 has stated today that no instructions have so far been received by him in the matter.

The matter requires consideration.

Issue notice pending admission.

Notice on behalf of the respondent Nos. 1 and 2 has been accepted by the learned Standing Counsel.

Notice on behalf of the respondent Nos. 3 and 4 has been accepted by Shri Rajesh Tripathi.

Counter Affidavit on behalf of the respondents may be filed within six weeks.

Rejoinder Affidavit may be filed by the next date fixed in the matter.

List this case before the appropriate Bench on 18th July, 2011.
Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case and having considered the submissions made by the learned counsel for the parties, it is provided that till the next date fixed in the matter, the recovery proceedings against the petitioner pursuant to the Citation dated 5th February, 2011 (Annexure 4 to the Writ Petition) will remain stayed provided within four weeks from today, the petitioner deposits an amount of Rs. 1,15,000/- with the respondent No.3.

The deposit so made by the petitioner will be without prejudice to the rights and contentions of the parties involved in the present case.

In case of default on the part of the petitioner in making the deposit, as directed above, this interim order will stand automatically vacated.

Order Date :- 27.4.2011

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Court No. - 21

Case :- WRIT - C No. - 13395 of 2011

Petitioner :- Ramvir

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Pankaj Srivastava, Neeraj Srivastava

Counsel for Respondent :- C.S.C., Ajay Singh, Rajesh Tripathi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

None appears for the petitioner to press the petition even in revised call.

Writ petition is dismissed for want of prosecution.

The order has been passed in the presence of Sri Ashutosh Dwivedi, Advocate holding brief of Sri Baleshwar Chaturvedi, learned counsel for the respondent Corporation.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 21.3.2023

Jaswant